# NATIONAL COMPANY LAW TRIBUNAL
# NEW DELHI BENCH (COURT-II)

## (CAA)-93/ND/2020

**IN THE MATTER OF SCHEME OF AMALGAMATION OF :**

**ELLORA COMMOSALES PRIVATE LIMITED**

**... Applicant No.1/Transferor Company**

**AND**

**AYEASHA VINCOM PRIVATE LIMITED**

**...Applicant No.2/Transferor Company**

**AND**

**INDUS EDUINFRASTRUCTURE PRIVATE LIMITED**

**...Applicant No.3/Transferor Company**

**AND**

**INDUS INFRA DEVELOPMENT PRIVATE LIMITED**

**...Applicant No.4/Transferor Company**

**AND**

**PARAMITRA HOLDINGS LIMITED**

**... Applicant No.5/Transferor Company**

**AND**

**BANSHIDHAR DEVELOPERS PRIVATE LIMITED**

**... Applicant No.6/Transferor Company**

**AND**

**DHANTERASH TRADELINK PRIVATE LIMITED**

**...Applicant No.7/Transferor Company**

**AND**

**NILACHAL APPARTMENT PRIVATE LIMITED**

**... Applicant No. 8/ Transferor Company**

**AND**

**RANGMAHALA AGENCY PRIVATE LIMITED**

**...Applicant No.9/Transferor Company**

**AND**

**SUBHDHAN MARKETING PRIVATE LIMITED**

**... Applicant No.10/Transferor Company**

**AND**

**TOPLINE SUPPLIERS PRIVATE LIMITED**

**...Applicant No. 11/Transferor Company**

**AND**

**PARAM MITRA INVESTMENTS LIMITED**

**...Applicant No. 12/Transferor Company**

**WITH**

**SHREYANS FINLEASE PRIVATE LIMITED**

**...Applicant No. 13/Transferee Company**

**AND**

**THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS**

**Order Delivered on : 13.01.2021**

**Section: 230 to 232 of the Companies Act, 2013**

**CORAM**

**SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)**
**SH. L.N GUPTA, HON'BLE MEMBER (TECHNICAL)**

**PRESENT**

For Applicants : CS Manish Gupta

## ORDER

**PER SHRI L.N. GUPTA, MEMBER (T)**

This Company Petition is jointly filed by the Applicant Companies for admission, fixing a date for hearing, direction for publication of notice of hearing to be effected in newspapers, and direction for service of notices to the concerned authorities for objections, if any, to the Composite Scheme of Amalgamation (hereinafter referred to as the "SCHEME") contemplated amongst the Applicants.

2. As per the averments, the Registered offices of all the Applicant Companies are situated in Delhi and hence, falling within the territorial jurisdiction of this Bench.

3. From the case records, it is seen that the First Motion seeking direction for dispensing the meeting of Equity Shareholders, Secured Creditors and Unsecured Creditors was filed before this Tribunal in C.A.(CAA)84/ND/2020 moved under Sections 230-232 of the Companies Act, 2013 and vide Order dated 23.11.2020, directions were issued by this Tribunal to dispense with the meetings of the Equity Shareholders and Unsecured Creditors of the Applicant Companies. Since there was no secured Creditor in the Applicant Companies, the requirement of dispensing with their meeting did not arise.

4. This Petition by way of Second Motion has come up before us for fixing a date of hearing as well as for other consequential direction in terms of the provisions of the Section 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016. It is now hereby ordered as follows :

(i) The Petition stands Admitted.

(ii) The date of hearing of the Petition filed by the Applicant Transferor Companies for approval of the Scheme is fixed for 10.03.2021.

(iii) Notice of the hearing shall be published in the newspapers namely, "Business Standard" (English, Delhi Edition) and "Business Standard" (Hindi, Delhi edition) in not less than 40 days before the aforesaid date fixed for hearing.

5. In addition to the publication of the above Public Notice, the Applicant Companies shall individually serve the notices of this Petition to the following Authorities, namely :

(a) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs,
(b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs,
(c) Official Liquidator, Delhi
(d) The Income Tax Department, and
(e) Such other Sectoral Regulatory Authorities, which govern working of the Companies involved in the Scheme;

at least 40 days before the date fixed for hearing of this Petition.

6. That the Applicant Companies shall, at least 7 days before the date of hearing of the Petition, file an Affidavit of Service in relation to the Newspaper publication effected as well as service of Notices on the Authorities as specified above including the Sectoral Regulators, if any.

7. Objections to the "SCHEME" contemplated by the Applicant Companies, if any, by the Authorities to whom Notices are given on or before the date of hearing fixed herein may be filed, failing which it will be presumed that there are no objections on the part of the Authorities and the "SCHEME" will be considered by this Tribunal subject to other conditions as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder being satisfied.

-Sd-

**(L. N. GUPTA)**
**MEMBER (T)**

-S.d-

**(ABNI RANJAN KUMAR SINHA)**
**MEMBER (J)**